



CHAPTER 47

An Act to provide for altering the extent to which deductions from widows' benefits and retirement pensions under the National Insurance Act, 1946, are to be made in respect of earnings. [5th July, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subsection (5) of section twenty of the National Insurance Act, 1946, as amended by subsection (6) of section four of the National Insurance Act, 1951 (which requires the weekly rate of a retirement pension to be reduced by the amount of any earnings of the beneficiary in excess of forty shillings) shall have effect as respects any week commencing on or after such day as the Minister may by order made by statutory instrument appoint (in this Act referred to as "the appointed day") as if—

- (a) for the words "forty shillings for the week preceding" there were substituted the words "fifty shillings for the calendar week ending last before"; and
- (b) for the words from "one" to "excess" there were substituted the words "sixpence for each complete shilling of the excess and a further sixpence for each complete shilling by which the earnings exceeded seventy shillings".

(2) Subsection (3) of section seventeen of the National Insurance Act, 1946, as amended by subsection (3) of section two of the National Insurance Act, 1951 (which requires the weekly rate of benefit to be reduced by the amount of any earnings of the beneficiary in excess of, in the case of a widowed mother's allowance, sixty shillings or, in the case of a widow's pension,

forty shillings) shall have effect as respects any week commencing on or after the appointed day as if—

- (a) in paragraph (a), for the words “ week preceding ” there were substituted the words “ calendar week ending last before ” ;
- (b) in paragraph (b), for the words “ forty shillings for the week preceding ” there were substituted the words “ fifty shillings for the calendar week ending last before ” ; and
- (c) for the words from “ one ” to “ excess ” there were substituted the words “ sixpence for each complete shilling of the excess and a further sixpence for each complete shilling by which the earnings exceeded, in the case of a widowed mother’s allowance, eighty shillings or, in the case of a widow’s pension, seventy shillings ”.

Regulations.

2. The Minister may make regulations amending the provisions of subsection (3) of section seventeen and subsection (5) of section twenty of the National Insurance Act, 1946, as amended by the National Insurance Act, 1951, and this Act, by altering—

- (a) the amount of earnings which is taken into consideration in calculating the weekly rate of the allowance or pension of any classes of beneficiary;
- (b) the sum by which the weekly rate of the allowance or pension is to be reduced for each shilling of the excess.

Regulations to be approved in draft by Parliament.

3. No regulations shall be made under section two of this Act unless a draft thereof has been laid before Parliament and has been approved by a resolution of each House of Parliament.

Short title, citation and construction.

4.—(1) This Act may be cited as the National Insurance Act, 1956.

(2) This Act shall be construed as one with the National Insurance Act, 1946, and may be cited together with the National Insurance Acts, 1946 to 1955, as the National Insurance Acts, 1946 to 1956.

PRINTED BY JOHN ROUGHTON SIMPSON, G.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament
LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 3d. net

PRINTED IN GREAT BRITAIN